

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 23, 2026 TIME: 8:30 A.M.

No. 26CV00720

JAMES v. RIVIAN AUTOMOTIVE, INC.

**DEFENDANT RIVIAN AUTOMOTIVE, LLC'S MOTION TO COMPEL
ARBITRATION AND STAY PROCEEDINGS**

The motion is granted.

I. BACKGROUND AND MOTION

Plaintiff Whitney James ("plaintiff") alleges three violations of the Song-Beverly Act related to his purchase of a 2025 Rivian R1T: (1) breach of express warranty, (2) breach of implied warranty, and (3) violation of Civil Code section 1793.2, subdivision (b). Defendant Rivian Automotive, LLC, is identified as the manufacturer/distributor of the vehicle. Plaintiff asserts that the vehicle suffers from non-conformities, including electrical, exterior and body component defects, braking system, and suspension defects.

On April 6, 2026, defendant Rivian Automotive, LLC ("Rivian" or "defendant") filed this motion to compel arbitration pursuant to the Rivian Motor Vehicle Purchase Agreement ("Purchase Agreement") with a binding arbitration clause, as well as pursuant to the Warranty Agreement, which also includes an arbitration clause. Rivian asserts this action belongs in arbitration because the parties explicitly agreed to arbitrate these types of claims. Rivian argues that, in the alternative, it may invoke the agreement to arbitrate pursuant to the doctrine of equitable estoppel because the Purchase Agreement incorporates by reference the warranties provided to plaintiff. Rivian also maintains that the Purchase Agreement gives the arbitrator exclusive authority to determine threshold questions, including arbitrability.

In opposition, plaintiff argues that the arbitration clauses do not apply because the Purchase Agreement with the arbitration clause is between plaintiff and non-party Rivian, LLC, not defendant Rivian and that the theories of equitable estoppel and third-party beneficiary cannot be used. Plaintiff states that he has "no claim against the selling dealership, Rivian, LLC. Here all Plaintiff's statutory claims are exclusively against Defendant and arise from Defendant's written warranty *not* the sales agreement with non-party, Rivian, LLC." (Opp. at p. 9.) Defendant cannot enforce the arbitration clause in the 2025 Warranty Agreement, contends plaintiff, because warranties do not impose binding obligations on the buyer.

In reply, defendant asserts that plaintiff's argument fails because Rivian Automotive, LLC, the named defendant in this action, is expressly named as a third-party beneficiary in the Purchase Agreement that can enforce the arbitration clause. Further, plaintiff is participating in an arbitration initiated by Rivian, LLC, the defendant's parent company, and is signatory to the

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Purchase Agreement. This arbitration, contends defendant, involves the same vehicle and claims raised by plaintiff in this complaint.

II. ASSERTED ARBITRATION AGREEMENTS

Attached to the declaration of defendant's counsel as exhibits A & B are the Purchase Agreement. Exhibit C is Rivian's Notice to All Rivian Owner's – Supplement, and exhibit D is Rivian's New Vehicle Limited Warranty Guide.

The Purchase Agreement, signed on September 23, 2024, is between Rivian, LLC and plaintiff. Exhibit B contains various notices associated with the Purchase Agreement, including a separate page for dispute resolution and binding arbitration found at section 16. The arbitration clause provides the following:

“Binding Arbitration. To the fullest extent permitted by applicable law and except for small claims or if You choose to opt-out as provided below, this Section governs all Disputes between You and Rivian. The term ‘Dispute’ is to be given the broadest possible meaning that will be enforced and means any dispute, demand, claim, or controversy of any kind between You and Rivian, whether based in contract, tort, statute, or otherwise, including but not limited to any claim for fraud, false advertising, misrepresentation, strict products liability, negligence, breach of contract, breach of express or implied warranties, or violations of consumer protection, privacy or data security laws, that arises out of or in any way relates to (1) this Agreement; (2) Our relationship (including any such relationship with affiliate third parties who did not sign this Agreement); (3) the purchase, sale, condition, design, or manufacturing of the Vehicle; (4) Rivian products or services; (5) advertising and other communications between You and Rivian; and as applicable, (6) Your credit application. **You and Rivian agree to resolve all Disputes** by binding arbitration conducted by the American Arbitration Association ("AAA") in accordance with the AAA Consumer Arbitration Rules, unless **You and We agree otherwise. For more information on arbitration and to access the AAA Consumer Arbitration Rules, please visit: www.adr.org. If the AAA Consumer Arbitration Rules conflict with this Agreement, then this Agreement shall control. You and We understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to present our claims to a jury and to have claims resolved by a jury trial, and also that judicial appeal rights, if any, are more limited in arbitration than they would be in court.”**

LAW AND MOTION TENTATIVE RULINGS

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Section 18 of the Purchase Agreement outlines the third party beneficiaries to this agreement: “Rivian, LLC’s subsidiaries and affiliates, including but not limited to Rivian Automotive Inc. and **Rivian Automotive, LLC shall be entitled to rely upon, shall be express third party beneficiaries of, and shall be entitled to enforce, the provisions of this Agreement, including without limitation, Section 16.**” (Emphasis added.)

Page 8, section 16 of the Purchase Agreement that “[t]he arbitrator ... shall have exclusive authority to resolve all disputes arising out of or relating to the interpretation, applicability, enforceability, or formation of this Section, including but not limited to any claim that all or any part of this Section is void or voidable. The arbitrator shall also have exclusive authority to resolve all threshold issue of arbitrability, including whether a Dispute is subject to arbitration, issues relating to whether this Section is applicable, unconscionable, or illusory, and any defense to arbitration, including waiver, delay, laches, or estoppel.”

The Warranty Agreement, incorporated into the Purchase Agreement at section 13, contains a section regarding dispute resolution and states, in part, that “[a]ny claim or dispute you may have related to your New Vehicle Limited Warranty or the duties contemplated under the warranty (among other disputes) will be arbitrated pursuant to the terms of the Final Agreement to Purchase. Under that agreement, you agree to resolve disputes with Rivian by binding arbitration, rather than litigation in court.”

III. LEGAL STANDARDS

Code of Civil Procedure section 1281.2, states, in part, “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. This subdivision shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.”

LAW AND MOTION TENTATIVE RULINGS

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In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.) “The general background begins with the tenet that the law favors enforcement of arbitration agreements. [Citation.]” (*Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal. App.4th 79, 95.)

IV. DISCUSSION

The Court finds there is a valid agreement to arbitrate between plaintiff and defendant pursuant to the Purchase Agreement.

Plaintiff and Rivian, LLC entered into a Purchase Agreement which contained an agreement to arbitrate. Plaintiff does not dispute that he entered into this Purchase Agreement but challenges whether defendant can enforce the Purchase Agreement because it is not a direct signatory. Defendant counters that it is clearly delineated as a third-beneficiary to the Purchase Agreement in section 18: “Rivian, LLC’s subsidiaries and affiliates, including but not limited to Rivian Automotive Inc. and **Rivian Automotive, LLC shall be entitled to rely upon, shall be express third party beneficiaries of, and shall be entitled to enforce, the provisions of this Agreement, including without limitation, Section 16.**” (Emphasis added.) Section 16 is the agreement to submit to binding arbitration. Plaintiff signed the acknowledgment and agreement to the terms delineated in section 16, Dispute Resolution – Arbitration and Class Action Waiver. Therefore, pursuant to the Purchase Agreement, defendant is a third-party beneficiary entitled to enforce the arbitration agreement.

Pursuant to page 8, section 16, “[t]he arbitrator ... shall have exclusive authority to resolve all disputes arising out of or relating to the interpretation, applicability, enforceability, or formation of this Section, including but not limited to any claim that all or part of this Section is void or voidable. The arbitrator shall also have exclusive authority to resolve all threshold questions of arbitrability, including whether a Dispute is subject to arbitration, issues relating to whether this Section is applicable, unconscionable, or illusory, and any defense to arbitration, including waiver, delay, laches or estoppel.”

“‘There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.’ [Citation.]” (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892.)

Here, the language, quoted above, clearly delegates to the arbitrator questions of arbitrability and demonstrates the parties’ intent to arbitrate the issue of arbitrability. Further,

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“[a]n arbitration provision's reference to, or incorporation of, arbitration rules that give the arbitrator the power or responsibility to decide issues of arbitrability may constitute clear and unmistakable evidence the parties intended the arbitrator to decide those issues.” (*Aanderud*, *supra*, 13 Cal.App.5th at p. 892.) Pursuant to the Purchase Agreement, the arbitration is to be conducted with the AAA Consumer Arbitration Rules. Defendant cites AAA Consumer Arbitration Rule, Rule R-14 (now Rule 7), which states that “(a) The arbitrator shall have the power to rule on his or her own jurisdiction, including any objections with respect to the existence, scope, or validity of the arbitration agreement or to the arbitrability of any claim or counterclaim. (b) The arbitrator shall have the power to determine the existence or validity of a contract of which an arbitration clause forms a part. Such an arbitration clause shall be treated as an agreement independent of the other terms of the contract. A decision by the arbitrator that the contract is null and void shall not for that reason alone render invalid the arbitration clause.” Finally, the Court notes that the parties are already conducting arbitration proceedings concerning this vehicle with Rivian, LLC, and it makes the most sense to resolve all plaintiff’s claims at the same time and in the same proceeding. (Decl. of Secord at ¶ 2.)

The motion to compel arbitration by defendant, an express third-party beneficiary to the Purchase Agreement, is granted. The parties also agreed to vest the arbitrator with the power to determine arbitrability. This action is stayed pending the outcome of the arbitration.